

23STCV08736 23STCV08736

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-06

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Case Number: 23STCV08736 Hearing Date: July 6, 2026 Dept: 316

BACKGROUND

This case is an employment action. Plaintiff Sasan Najibi alleges that he initiated, participated and/or cooperated in investigations related to the quality of care, services, or conditions while employed at Defendants Providence Health System – Southern California, Providence Health & Services, and Providence Saint Joseph Medical Center. As a result of this participation, Plaintiff was allegedly subjected to unwanted harassment, exclusion, humiliation, intimidation, and retaliation.

On April 19, 2023, Plaintiff filed his original complaint against Defendants Providence Health System – Southern California, Providence Health & Services, Providence Saint Joseph Medical Center, and Providence Valley Service Area Community Ministry Board.

On September 11, 2023, Plaintiff filed his first amended complaint against Defendants.

On December 30, 2024, the parties entered into a stipulation agreement. The stipulation stayed all discovery until there was a final decision in the corresponding peer review proceeding.

On June 3, 2026, Plaintiff filed a Motion to Lift Stay for a Limited Purpose ("Motion").

On June 22, 2026, Defendants

filed an opposition.

On June 26, 2026, Plaintiff
filed a reply.

TENTATIVE RULING

Plaintiff's
Motion to Lift Stay for a Limited Purpose is to defer the ruling for three
months to allow the peer review proceeding to be completed.

LEGAL STANDARD

The
Court has the power to "amend and control its process and orders so as to make
them conform to law and justice." (Code Civ. Proc., § 128, subd. (8).)
Furthermore, the Court may adopt any proceeding necessary to conform with the
spirit of California law. (See *id.* at § 187.) And lastly, "Trial courts
generally have the inherent power to stay proceedings in the interests of
justice and to promote judicial efficiency." (*Freiberg v. City of Mission
Viejo* (1995) 33 Cal.App.4th 1484, 1489.)

DISCUSSION

The Court does not find a reasonable
justification for the stay to be lifted at this time, even in the limited
manner requested by Plaintiff.

The parties stipulated that discovery
would be stayed until a final decision was rendered in the corresponding peer
review proceeding. (See Motion, Exh. 1, p. 4:5-7.) The peer review proceeding
has not yet ended, and no final decision has been made. (See Nickerson Decl., §
2.) Despite this, Plaintiff now seeks to lift stay so the parties may exchange
documents and other written documents. (See Motion, p. 3:26-27.) Plaintiff proposes
to hold off on taking any depositions while the peer review proceeding continues.
(See *id.* at pp. 4:28-5:1.)

Plaintiff's justification for

lifting the stay is that it “would promote judicial efficiency and economy and allow the parties to hit the ground running in litigating this case once the peer review proceeding is resolved.” (Id. at p. 4:2-3; see also id. at pp. 5:20-6:4.) The Court understands Plaintiff’s desire to move forward with litigating the case. However, Plaintiff does not provide a persuasive justification for now waiting for the peer review proceeding to be completed. Furthermore, the most recent appeal hearing took place on June 8, 2026. (See Albin-Reiley Decl., ¶ 5.) Therefore, it appears a decision is likely soon to be rendered.

Also, the Court is not convinced that the length of the peer review proceeding justifies lifting the stay. The Court recognizes that the proceeding has gone on for almost two years. However, Plaintiff is partially responsible for this. The Judicial Hearing Committee (“JHC”) rendered its original decision on July 3, 2025. (See id. at ¶ 4.) Thus, litigation could have proceeded around that time. However, Plaintiff appealed the JHC’s decision in January 2026. (See id. at ¶ 5.) Plaintiff is of course allowed to appeal the JHC’s decision. However, the Court does not find the additional length of the review due to the appeal is a sufficient justification to lift the agreed upon stay.

CONCLUSION

For the foregoing reasons, Plaintiff’s Motion to Lift Stay for a Limited Purpose is deferred. The hearing is continued to October 6, 2026, at 8:30 a.m. The parties are ordered to provide an update on the status of the peer review proceeding by no later than October 1, 2026. The Court does not need further argument unless there has been a change in circumstances by October 1, 2026, that justifies additional argument.